**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH**

CRWP-6985-2026

Date of decision: 12.06.2026

Pawan Kumar**...Petitioner**

Versus

State of Haryana and others

...Respondents

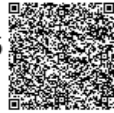
CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA

Present: Mr. Sanjiv Gupta, Sr. Advocate with
Mr. Aayush Bansal, Advocate for the petitioner.

DEEPAK GUPTA, J. (ORAL)

By way of the present petition filed under Article 226 of the Constitution of India, the petitioner seeks issuance of appropriate directions to respondents No.2 to 6 to take action on his representation dated 01.06.2026 (Annexure P-6) against private respondents No.7 to 10 alleging commission of fraud and also seeks protection of his life, liberty and property.

2. Learned senior counsel for the petitioner submits that respondent No.7, along with his companies i.e. respondents No.8 and 9, is owner in possession of certain parcels of land. It is contended that on the inducement and assurances extended by respondent No.7, the petitioner entered into a partnership deed (Annexure P-1) for development of the said land. According to the petitioner, respondent No.7 represented that an amount of ₹2 crore was required towards collaboration expenses, licence fee and other ancillary charges for obtaining necessary permissions and licences in the name of the partnership concern. Acting upon such representations, the petitioner allegedly invested the aforesaid amount and acquired a 25% share in the venture. It is further alleged that after obtaining the aforesaid amount and upon escalation in the market value of the property, respondent No.7 dishonestly sidelined the petitioner and entered into a separate collaboration arrangement with respondent No.10.



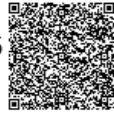
3. The grievance of the petitioner is that despite the subsistence of the partnership deed, he has been excluded from the project and his investment of ₹2 crore has been misappropriated. It is also averred that a civil suit seeking declaration, permanent injunction and mandatory injunction has already been instituted by the petitioner and the same is presently pending adjudication before the competent Civil Court. The petitioner further alleges that licence/permission has been granted by the Directorate of Town and Country Planning in favour of respondent No.7 despite his objections and application. Since no action was allegedly taken on representation Annexure P-6, the present writ petition has been filed.

4. I have heard learned senior counsel for the petitioner and perused the paper-book.

5. A bare reading of the pleadings leaves no doubt that the dispute essentially emanates from a partnership arrangement, alleged breach of contractual obligations, investment of money, rights flowing from the partnership deed and competing claims arising out of a development project. The determination of such issues would necessarily require examination of disputed questions of fact, appreciation of evidence and adjudication of civil rights of the parties, which fall squarely within the domain of the competent Civil Court.

6. Significantly, the petitioner himself admits that a civil suit seeking declaration, permanent injunction and mandatory injunction concerning the very same subject matter is already pending. Once the petitioner has availed the ordinary civil remedies and the dispute is sub judice before the Civil Court, this Court would be slow in exercising its extraordinary writ jurisdiction to issue directions which may directly or indirectly affect the rights of the contesting parties in the pending civil proceedings.

7. The mere use of expressions such as "fraud" or "cheating" in the pleadings would not, by itself, convert a predominantly civil and contractual



dispute into a matter warranting intervention in exercise of writ jurisdiction. Whether respondent No.7 has violated the terms of the partnership deed, whether the petitioner possesses any enforceable rights in the project, whether the amount claimed by him is recoverable and whether any subsequent transaction entered into by respondent No.7 is legally sustainable, are the issues which are required to be adjudicated by the competent forum on the basis of evidence.

8. Equally, no ground is made out for issuance of directions for protection of life and liberty. Except for a bald and general assertion, the petition does not disclose any specific incident, threat perception or material from which it could be inferred that the life or personal liberty of the petitioner is under any imminent threat from the private respondents. In the absence of any such averment or supporting material, no direction on that count is called for.

9. This Court is also of the view that no useful purpose would be served by directing the authorities to decide the representation dated 01.06.2026 when the underlying grievance pertains to a private dispute involving contractual and proprietary rights and the petitioner is already pursuing appropriate civil remedies before the competent Court.

10. In view of the aforesaid facts and circumstances, this Court does not find any ground to invoke its extraordinary jurisdiction under Article 226 of the Constitution of India.

11. Consequently, the present writ petition is dismissed.

12.06.2026

Yogesh

(DEEPAK GUPTA)

JUDGE

Whether speaking/reasoned:- Yes/No

Whether reportable:- Yes/No